

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

JOSEPH CURET,

Plaintiff,

-against-

THE CITY OF NEW YORK, JONATHAN KEITH, and
ST. BARNABAS HOSPITAL,

Defendants.

Index No.

Date Filed:

Plaintiff designates
Bronx County as
the place of trial.SUMMONSThe basis of venue
is CPLR § 504(3).*To the above named Defendants:*

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the plaintiff's attorney within twenty days after the service of this summons, exclusive of the day of service (or within thirty days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
May 22, 2018Yours, etc.,
KRAMER, DUNLEAVY & RATCHIK, PLLC
Attorneys for PlaintiffBy: Jonathan R. Ratchik
A Member of the Firm
61 Broadway, Suite 2220
New York, New York 10060
(212) 226-6662

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

JOSEPH CURET,

Plaintiff,

-against-

THE CITY OF NEW YORK, JONATHAN KEITH, and
ST. BARNABAS HOSPITAL,

Defendants.

VERIFIED COMPLAINT

Index No.

Filed:

Plaintiff, by her attorneys, KRAMER, DUNLEAVY & RATCHIK,
PLLC, complaining of the defendants, respectfully alleges as follows:

1. That upon information and belief and at all times
hereinafter mentioned, defendant THE CITY OF NEW YORK was and still is a
municipal corporation, duly organized and existing under and by virtue of the laws
of the State of New York.

2. That upon information and belief and at all times
hereinafter mentioned, defendant JONATHAN KEITH was a member of the New
York City Police Department and an employee of defendant THE CITY OF NEW
YORK.

3. That upon information and belief and at all times
hereinafter mentioned, defendant JONATHAN KEITH was acting within the scope of
his employment with defendant THE CITY OF NEW YORK.

4. That upon information and belief and at all times
hereinafter mentioned, defendant ST. BARNABAS HOSPITAL was a domestic not-for-

profit corporation duly organized and existing under and by virtue of the laws of the State of New York.

5. That on August 25, 2017, defendant JONATHAN KEITH arrested the plaintiff for allegedly making threats to members of the New York City Police Department.

6. That following his arrest, plaintiff was taken to the 46th Precinct, 2120 Ryer Avenue, County of Bronx, City and State of New York, where he was placed in a detention cell.

7. That while detained within the 46th Precinct, plaintiff began to complain of chest palpitations, whereupon he was taken by ambulance to St. Barnabas Hospital, located at 4422 Third Avenue, County of Bronx, City and State of New York.

8. That while he was a patient at defendant ST. BARNABAS HOSPITAL, plaintiff remained in the care, custody and under the supervision of defendants THE CITY OF NEW YORK and JONATHAN KEITH.

9. That while he was a patient at defendant ST. BARNABAS HOSPITAL, plaintiff was handcuffed to a hospital bed by defendant JONATHAN KEITH.

10. That at approximately 5:30 a.m. and while he was still restrained and in the care, custody and under the supervision of defendants THE CITY OF NEW YORK and JONATHAN KEITH, plaintiff was stabbed in the chest and right arm by Tomas Berroa.

11. That Tomas Berroa stabbed and assaulted plaintiff without any provocation or legal justification.

12. That Tomas Berroa's stabbing and assault of plaintiff was foreseeable.

13. That prior to and including August 25, 2017, criminal activity repeatedly occurred within St. Barnabas Hospital, including but not limited to assault, harassment, weapons possession and larceny.

14. That upon information and belief and at all times mentioned herein, Tomas Berroa was a patient of defendant ST. BARNABAS HOSPITAL.

15. That by reason of the foregoing, plaintiff sustained serious and permanent physical injuries; was caused and continues to suffer pain and suffering; has incurred and will continue to incur expenses for medical, hospital and nursing care; has incurred and will continue to incur economic loss; and has been unable to pursue his daily tasks and activities with the same ability as prior to this incident.

16. That on or about the November 15, 2017, a Notice of Claim was duly served upon defendant THE CITY OF NEW YORK and that said claim was duly verified as to the time, place, cause and nature and extent of the plaintiff's injuries and damages.

17. That more than thirty (30) days have elapsed since the presentation of said Notice of Claim upon defendant THE CITY OF NEW YORK, and

the Comptroller thereof has failed, neglected and refused to pay, settle or adjust the claim of the plaintiff herein.

18. That pursuant to General Municipal Law § 50-h, a hearing was held on February 26, 2018.

19. That this action has been commenced within one year and ninety days after the cause of action herein accrued.

**AS AND FOR A FIRST CAUSE OF ACTION
AGAINST DEFENDANTS THE CITY OF NEW YORK
AND JONATHAN KEITH (NEGLIGENCE)**

20. Plaintiff repeats and realleges each and every allegation contained in paragraphs "1" through "19" inclusive, with the same force and effect as though more fully set forth at length herein.

21. That at all times mentioned herein, it was the duty of defendant THE CITY OF NEW YORK, its agents, servants and/or employees, to provide pre-trial detainees in its care and custody with proper supervision and/or protection.

22. That at all times mentioned herein, it was the duty of defendant JONATHAN KEITH to provide pre-trial detainees in his care and custody with proper supervision and/or protection.

23. That at all times mentioned herein, it was the duty of defendant THE CITY OF NEW YORK, its agents, servants and/or employees, to safeguard pre-trial detainees from foreseeable risks of harm, including risks of attack by others.

24. That at all times mentioned herein, it was the duty of defendant JONATHAN KEITH to safeguard pre-trial detainees from foreseeable risks of harm, including risks of attack by others.

25. That prior to the assault and stabbing of plaintiff, defendants THE CITY OF NEW YORK and JONATHAN KEITH had actual notice of the aforementioned criminal activity at St. Barnabas Hospital.

26. That prior to the assault and stabbing of plaintiff, defendants THE CITY OF NEW YORK and JONATHAN KEITH had constructive notice of the aforementioned criminal activity at St. Barnabas Hospital.

27. That despite notice and knowledge of prior criminal activity at St. Barnabas Hospital and a foreseeable risk of harm to pre-trial detainees such as the plaintiff, defendants THE CITY OF NEW YORK and JONATHAN KEITH failed to provide plaintiff with proper supervision and/or protection.

28. That the negligence of defendants THE CITY OF NEW YORK and JONATHAN KEITH was a substantial factor in causing the incident complained of herein to occur.

29. That the foregoing incident was caused solely by the carelessness, negligence and culpable acts and conduct on the part of defendants THE CITY OF NEW YORK and JONATHAN KEITH, their agents, servants and/or employees, and without any negligence on the part of the plaintiff contributing thereto.

30. That by reason of the foregoing, plaintiff sustained the damages hereinbefore mentioned and in a sum that exceeds the jurisdiction of all lower courts and is within the jurisdiction of this court.

31. That this action falls within one or more of the exceptions set forth in CPLR §1602.

**AS AND FOR A SECOND CAUSE OF ACTION
AGAINST DEFENDANT JONATHAN KEITH
(42 U.S.C. § 1983)**

32. Plaintiff repeats and realleges each and every allegation contained in paragraphs "1" through "31" inclusive, with the same force and effect as though more fully set forth at length herein.

33. That at all times mentioned herein, defendant JONATHAN KEITH was acting under color of state law.

34. That while acting under color of state law, defendant JONATHAN KEITH deprived plaintiff of the rights, privileges and/or immunities guaranteed to every citizen of the United States, secured by 42 U.S.C. § 1983, including but not limited to rights guaranteed by the Eighth and Fourteenth Amendments to the United States Constitution to be free from cruel and unusual punishment, to safe conditions and to security from attack by others.

35. That by reason of the foregoing, plaintiff sustained the damages hereinbefore mentioned and in a sum that exceeds the jurisdiction of all lower courts and is within the jurisdiction of this court.

36. That this action falls within one or more of the exceptions set forth in CPLR § 1602.

AS AND FOR A THIRD CAUSE OF ACTION
AGAINST DEFENDANT ST. BARNABAS HOSPITAL
(NEGLIGENCE)

37. Plaintiff repeats and realleges each and every allegation contained in paragraphs "1" through "36" inclusive, with the same force and effect as though more fully set forth at length herein.

38. That upon information and belief and at all times hereinafter mentioned, defendant ST. BARNABAS HOSPITAL owned St. Barnabas Hospital.

39. That upon information and belief and at all times hereinafter mentioned, defendant ST. BARNABAS HOSPITAL, by its agents, servants and/or employees, operated St. Barnabas Hospital.

40. That upon information and belief and at all times hereinafter mentioned, defendant ST. BARNABAS HOSPITAL, by its agents, servants and/or employees, maintained St. Barnabas Hospital.

41. That upon information and belief and at all times hereinafter mentioned, defendant ST. BARNABAS HOSPITAL, by its agents, servants and/or employees, controlled St. Barnabas Hospital.

42. That at all times mentioned herein, it was the duty of defendant ST. BARNABAS HOSPITAL to take reasonable security measures in order to protect its patients from foreseeable harm, including foreseeable criminal conduct by a third party.

43. That at all times herein mentioned, defendant ST. BARNABAS HOSPITAL, by its agents, servants and/or employees, had actual notice of the aforementioned criminal activity at St. Barnabas Hospital.

44. That at all times herein mentioned, defendant ST. BARNABAS HOSPITAL, by its agents, servants and/or employees, had constructive notice of the aforementioned criminal activity at St. Barnabas Hospital.

45. That prior to the assault and stabbing of plaintiff, defendant ST. BARNABAS HOSPITAL had actual notice of Tomas Berroa's violent tendencies.

46. That prior to the assault and stabbing of plaintiff, defendant ST. BARNABAS HOSPITAL had constructive notice of Tomas Berroa's violent tendencies.

47. That at all times herein mentioned, defendant ST. BARNABAS HOSPITAL, by its agents, servants and/or employees, had knowledge and notice of the aforementioned criminal activity and thus had reason to know that criminal activity was likely to occur again in or about the subject hospital.

48. That despite notice of the aforementioned criminal activity and Tomas Berroa's violent tendencies, defendant ST. BARNABAS HOSPITAL, its agents, servants and/or employees, failed to take reasonable security measures to protect plaintiff from foreseeable criminal activity.

49. That the negligence of defendant ST. BARNABAS HOSPITAL was a substantial factor in causing the incident complained of herein to occur.

50. That the foregoing incident was caused solely by the carelessness, negligence and culpable acts and conduct on the part of defendant ST. BARNABAS HOSPITAL, its agents, servants and/or employees, and without any negligence on the part of the plaintiff contributing thereto.

51. That by reason of the foregoing, plaintiff sustained the damages hereinbefore mentioned and in a sum that exceeds the jurisdiction of all lower courts and is within the jurisdiction of this court.

52. That this action falls within one or more of the exceptions set forth in CPLR §1602.

WHEREFORE, plaintiff demands judgment against the defendants in a sum that exceeds the jurisdiction of all lower courts, together with the costs and disbursements of this action.

Dated: New York, New York
May 22, 2018

KRAMER, DUNLEAVY & RATCHIK, PLLC
Attorneys for Plaintiff



By: Jonathan R. Ratchik
61 Broadway- Suite 2220
New York, New York 10006
(212) 226-6662

VERIFICATION

STATE OF NEW YORK)
 .:ss
NEW YORK COUNTY)

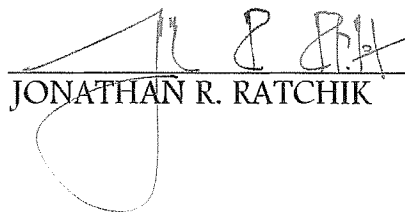
I, the undersigned, an attorney admitted to practice in the Courts of New York State, state that I am a partner in the firm of KRAMER, DUNLEAVY & RATCHIK, PLLC, attorneys for the plaintiff in the within action; I have read the foregoing Complaint and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by plaintiff, is because the plaintiff is not now within the County where deponent maintains his offices.

The grounds of my belief as to all matters not stated upon my own knowledge are as follows:

Conversations with plaintiff and a review of the file maintained at my offices on this matter.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: New York, New York
May 22, 2018


JONATHAN R. RATCHIK